The examination is being carried out on the **following application documents**

Description, Pages

1-32 as originally filed

Claims, Numbers

1-16 as originally filed

Drawings, Sheets

1/26-26/26 as originally filed

Prior art

1 Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 WO 2021/150868 A1 (ALL TAG CORP [US]) 29 July 2021 (2021-07-29)

D2 WO 2013/043810 A2 (MEADWESTVACO CORP [US]) 28 March 2013 (2013-03-28)

D3 US 2020/111389 A1 (CURNEW LUCIEN [CA] ET AL) 9 April 2020 (2020-04-09)

D4 US 2002/135481 A1 (CONWELL KEVIN GIRARD [US] ET AL) 26 September 2002 (2002-09-26)

D5 US 2019/244501 A1 (FAVIER ALAIN [FR]) 8 August 2019 (2019-08-08)

Art. 82 EPC

2 The application lacks unity (Article 82 EPC).

The following groups of inventions are not so linked as to form a single general inventive concept:

– Group I: claims 1-4, 14-16;

– Group II: claim 5;

– Group III: claims 6-13.

The reasons are as follows:

2.1 The common matter linking these groups (or subgroups thereof) of inventions is indicated as highlighted in bold for each of the independent claims in the points 2.1.1, 2.1.2, 2.1.3, 2.1.4, 2.1.5 and 2.1.6 below.

The common matter highlighted in bold but not underlined is already known from D1: please refer to the points 2.1.1, 2.1.2, 2.1.3, 2.1.4, 2.1.5 and 2.1.6 below (the references in parenthesis referring to this document). The common matter highlighted in bold and underlined is regarded as obvious in the light of the teaching of D1 for the reasons explained below.

2.1.1 Claim 1

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **comprising a rigid or semi-rigid** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic – see § [0006] –, which is a semi-rigid, flexible material) **plastic member** (§ [00014], *"... a rigid casing that substantially corresponds to the shape of a product and adapted to cover at least one side of the product but not fully enclosing the product ..."*, § [00032], claim 1) ~~less than 2.5 mm in thickness~~ **having a first surface and a second surface and adapted to attach to a product** (figures 9A-9C); **a double-sided glue** (§ [00028], [00044], *"double-sided glue 140"*, figures 9A-9C) **wherein a first side of the glue is attached to the second surface of the plastic member and the second side of the**

glue is adapted to be adhered to the product (§ [00028], [00044], *"The glue 140 is located on the perimeter of the improved Keeper 100 in order to attached it onto a product 80 protecting only one side of the product 80."*, figures 9B, 9C); **a peel-off paper adhered to the second side of the glue prior to the plastic member being adhered to the product** (§ [00044], *"peel-off paper 142"*, figure 9B); **a security element or a non-EAS label** (§ [00038]) ~~attached to the second surface of the plastic member~~ **and inaccessible to a consumer when the Keeper is attached to the product** (§ [00033], *"... side wall 28 is adapted to receive a security element 16 which may be adhered to side wall 28 by any suitable means such as an adhesive. The security element 16 is not accessible to consumers such that it cannot be removed and preferably cannot be seen."*, figure 2); ~~and having one or more horizontal predetermined grooves in at least the first surface of the plastic member and adapted to break when force is applied in an attempt to remove the Keeper from the product~~.

2.1.2 Claim 5

A disposable security device keeper having no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **comprising a semi-rigid flexible** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic – see § [0006] –, which is a semi-rigid, flexible material) **plastic member** (§ [00014], *"... a rigid casing that substantially corresponds to the shape of a product and adapted to cover at least one side of the product but not fully enclosing the product ..."*) **adapted to adhere to a product having a flat surface** (§ [00028], [00032], [00044], figure 9C: the product 80 has a flat surface and the rigid casing 12 of the keeper is attached to the flat surface) ~~or a rounded surface~~, **a double-sided glue wherein a first side of**

the glue is attached to the plastic member and the second side of the glue is adapted to be adhered to the product (§ [00044], *"... a double-sided glue 140 with peel-off paper 142. The glue 140 is located on the perimeter of the improved Keeper 100 in order to attached it onto a product 80 protecting only one side of the product 80."*, figures 9B, 9C); **a peel-off paper adhered to the second side of the glue prior to the plastic member being adhered to the product** (§ [00044], *"peel-off paper 142"*, figure 9B); **a security element or a non-EAS label** (§ [00038]) **attached to the plastic member and inaccessible to a consumer when the Keeper is attached to the product** (§ [00033], *"... side wall 28 is adapted to receive a security element 16 which may be adhered to side wall 28 by any suitable means such as an adhesive. The security element 16 is not accessible to consumers such that it cannot be removed and preferably cannot be seen."*, figure 2); **wherein the second side of the glue is a glue which is adapted to damage the product label if the Keeper is removed** (obvious for the embodiment of figures 9A-9C in the light of § [00037]. More particularly, the embodiment of figures 9A-9C would not make any technical sense if the used glue permitted to remove the keeper from the product without damaging the latter. In fact, the skilled person readily realises that the concept of *"permanent adhesive"* mentioned is § [00037] applies to all the embodiments, including thus also the embodiment of figures 9A-9C).

2.1.3 Claim 6

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **adapted to prevent a product packaging from being opened from at least two sides of the product packaging** (implicitly disclosed by figures 11A and 11B in conjunction with § [00046]. In fact standard cosmetic packages such as those

depicted in figures 11A and 11B have a bottom and a top opening) **comprising**

- two sub-Keepers (§ [00046], *"... two Keepers 310 and 410 at the top and bottom of a Hard Good 180 ..."*, figures 11A, 11B) ~~attached to each other by separation means and adapted to be separated~~ **and attached to the product packaging to prevent the product packaging from being opened** (implicitly disclosed by figures 11A and 11B in conjunction with § [00046]);

- the two sub-Keepers each comprising a rigid or semi-rigid plastic member (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material) **having a security element on at least one of the sub-Keepers** (implicitly disclosed by § [00046] and figures 11A and 11B in the light of the whole disclosure of D1) ~~and a double-sided glue and peel-off backing papers~~ **wherein a first sub-Keeper is attached to a first opening means of a product packaging to prevent the package from being opened and the second sub-Keeper is attached to a second opening means of a product packaging to prevent the package from being opened** (implicitly disclosed by figures 11A and 11B in conjunction with § [00046]. In fact standard cosmetic packages such as those depicted in figures 11A and 11B have a bottom and a top opening).

2.1.4 Claim 8

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **for attachment to a product container having a body and a lid for access to the product in the body** (§ [00046], figure 11A and 11B: the arrangement shown in figures 11A and 11B of D1 is suitable for being attached to a product container having a

body and a lid for access to the product in the body) **comprising a first semi-rigid plastic member** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material) **having a first surface and a second surface** (§ [00046], figures 11A and 11B: each of the keepers 310 and 410 have at least a first surface and a second surface), ~~said second surface having a double-sided glue and a peel-off backing and adapted to be adhered to the body of the container when the peel-off backing is removed~~, at least one security element attached to said second surface (the security element is implicitly attached to one of the keepers 310 and 410) **and a second semi-rigid plastic member** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material) **removably attached to the first plastic member and adapted to be attached to said lid of said container to prevent the opening of said lid** (§ [00046], figures 11A and 11B: this is the case for example when the top part of the cosmetic package or container has a lid).

2.1.5 Claim 12

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **for attachment to a metal container** (nothing prevents the embodiment of figures 11A and 11B to be attached to a metal container. Thus, the keeper of the embodiment of D1 disclosed in § [00046] and figures 11A and 11B is suitable for attachment to a metal container) **comprising a thin semi-rigid plastic member having a first surface and a second surface and adapted to adhere to said metal container by said second surface** (§ [00046], figures 11A, 11B: both the keepers 310 and 410 anticipate

these features. It is observed that the adjective "thin" provides only a very broad limitation: also the keepers 310 and 410 are "thin". Moreover, even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material), ~~said second surface includes a double-sided glue attached to said second surface of said plastic member and one side of said glue adapted to adhere to said product container, at least one security element attached to said second surface by said glue, wherein said plastic member includes a dome shaped surface having a distance of about 2 mm to 10 mm to separate said at least one security element from said metal container~~.

2.1.6 Claim 14

A disposable security device keeper with no locking mechanism (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de-activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) **comprising a rigid or semi-rigid** (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid material) **plastic member** (§ [00014], *"... a rigid casing that substantially corresponds to the shape of a product and adapted to cover at least one side of the product but not fully enclosing the product ..."*, § [00032], claim 1) **having a first surface and a second surface and adapted to attach to a product** (figures 9A-9C); **a double-sided glue** (§ [00028], [00044], *"double-sided glue 140"*, figures 9A-9C) **wherein a first side of the glue is attached to the second surface of the plastic member and the second side of the glue is adapted to be adhered to the product** (§ [00028], [00044], *"The glue 140 is located on the perimeter of the improved Keeper 100 in order to attached it onto a product 80 protecting only one side of the product 80."*, figures 9B, 9C); **a peel-off paper adhered to the second side of the glue**

prior to the plastic member being adhered to the product (§ [00044], *"peel-off paper 142"*, figure 9B); **a security element or a non-EAS label** (§ [00038]) ~~attached to the second surface of the plastic member~~ **and inaccessible to a consumer when the Keeper is attached to the product** (§ [00033], *"... side wall 28 is adapted to receive a security element 16 which may be adhered to side wall 28 by any suitable means such as an adhesive. The security element 16 is not accessible to consumers such that it cannot be removed and preferably cannot be seen."*, figure 2); **and having a peg-hole adapted to align with a peg-hole of a product** (§ [00043], [00044], figure 9C), ~~wherein the peg-hole of the Keeper includes guide members to align the peg-hole of the Keeper with the peg-hole of the product~~.

2.2 The common matter therefore cannot constitute a single general inventive concept linking the independent claims.

2.3 Invention I comprises the additional features of claim 1, according to which the keeper has one or more horizontal predetermined grooves in at least the first surface of the plastic member and adapted to break when force is applied in an attempt to remove the keeper from the product.

2.3.1 It is observed that, although independent claim 14 defines substantially a different invention than independent claim 1, both these independent claims share the feature, according to which the security element is attached to the second surface of the plastic member. As this feature cannot be regarded to be obvious in the light of the teaching of D1, the independent claims 1 and 14 and the corresponding dependent claims have been grouped in a single invention (invention I).

2.4 Invention II comprises the additional features of claim 5, according to which the semi-rigid flexible plastic member is adapted to adhere to a product having a rounded surface.

2.5 Invention III comprises the additional features of claim 6, according to which the two sub-Keepers are attached to each other by separation means and adapted to be separated.

2.5.1 It is observed that, although independent claim 8 with its dependent claims defines substantially a different invention than independent claim 6, both these independent claims share the feature, according to which the sub-keepers and the second surface of the first semi-rigid plastic member have a double-sided glue and a peel-off backing and are adapted to be adhered to the body of the

product/container when the peel-off backing is removed. As this feature cannot be regarded to be obvious in the light of the teaching of D1 (and in particular of the embodiment of figures 11A and 11B), the independent claims 6 and 8 and the corresponding dependent claims have been grouped in a single invention (invention III). The same applies, for similar reasons, to the independent claim 12, because the features of claim 12 disclosed by D1 are those of the embodiment of figures 11A and 11B. Therefore also the independent claim 12 and the corresponding dependent claims have been grouped together with invention III.

2.6 It follows that the features of inventions I-III which make a technical contribution over the common matter are different.

2.7 The technical effect of the additional features of invention I is that the keeper breaks in case an attempt is made to remove the keeper from the product. The problem solved by these technical features can be regarded as: how to render the keeper more tamper safe.

2.8 The technical effect of the additional features of invention II is that the keeper can be better attached to round objects, such as bottles. The problem solved by these technical features can be regarded as: how to facilitate the use of the keeper with round objects, such as bottles.

2.9 The technical effect of the additional features of potential invention III is that the keeper can be better stored and/or transported before being attached to a product. The problem solved by these technical features can be regarded as: how to improve the logistic of the keepers.

2.10 As the technical problems are different, the additional technical features cannot be considered to be corresponding special technical features.

2.11 As the claims do not comprise the same or corresponding special technical features, they lack the technical relationship between their subject-matter required by Rule 44 EPC and the claims are not so linked as to form a single general inventive concept.

The application therefore does not fulfil the requirement for unity of invention within the meaning of Article 82 EPC.

2.12 The application can only be prosecuted on the basis of an invention that has been searched by the EPO. Upon entry into the examination phase, the applicant should limit the application to only one searched invention, or unitary group of inventions, and excise those parts of the application relating to the other invention(s) (see EPC Guidelines C-III, 3.2.1 and 3.2.2; H-II, 6.1, 6.3 and 6.4.2).

2.12.1 The subject-matter to be excised may be made the subject of one or more divisional applications according to Rule 36 EPC.

Art. 84 EPC - first invention

3 Claims 1 and 14 are not allowed together as independent claim in the same category because they do not fall within one or more of the exceptional situations set out in paragraphs (a), (b) or (c) of Rule 43(2) EPC. Concerning Rule 43(2)(c) EPC, it is observed that claim 1 addresses the problem of rendering the keeper more tamper safe, while claim 14 addresses the problem of facilitating a correct attachment of the keeper to the product. Thus Rule 43(2)(c) EPC clearly does not apply. The reasons why Rule 43(2)(a) and (b) EPC also do not apply is self evident, as claims 1 and 14 do not define interrelated products, neither they define different uses of a product or apparatus.

3.1 In order to meet the requirement of Art. 84 EPC (conciseness), only one of the independent claims 1 and 14 can remain, while the other may be made the subject of a divisional applications according to Rule 36 EPC. **Failure to meet this requirement will lead to a refusal of the application under Art. 97(2) EPC**.

3.2 The term "Keeper" should not be between bracket at line 2 of claims 1 and 14, otherwise it cannot be referred later on in these claims. It is therefore suggested to replace *"("Keeper")"* with *", in the following referred to as Keeper,"*.

Art. 84 EPC - second invention

4 The subject-matter of claim 5 is not clear for the following reasons:

4.1 The term "Keeper" should not be between bracket at line 2 of the claim, otherwise it cannot be referred later on in the claim. It is therefore suggested to replace *"("Keeper")"* with *", in the following referred to as Keeper,"*.

4.2 The feature *"the product label"* has no antecedence. It is therefore suggested to replace it with *"a product label"*.

Art. 52(1), 54(1,2) and 56 EPC - first invention

5 Both claim 1 and claim 14 would appear to be new and to involve an inventive step over the available prior art.

Art. 52(1), 54(1,2) and 56 EPC - second invention

6 The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claim 5 (flat surface option) does not involve an inventive step within the meaning of Article 56 EPC.

6.1 D1 can be considered to be the prior art closest to the subject-matter of claim 5 (flat surface option) and discloses (the references in parenthesis applying to this document):

A disposable security device keeper having no locking mechanism, in the following referred to as Keeper, (§ [0008], *"Another primary object of the invention is to provide an improved Keeper which does not include a locking mechanism and, therefore, the Keeper will not be required to be removed at the point of sale. Upon checkout the de- activatable EAS label or re-programmable RFID inlay will be deactivated or turned-off to allow a paying customer to leave the store without triggering the EAS Security Gates ..."*) comprising a semi-rigid flexible (even though D1 does not explicitly mentions the expression "semi-rigid", it mentions however that the keeper can be made of polycarbonate plastic - see § [0006] -, which is a semi-rigid, flexible material) plastic member (§ [00014], *"... a rigid casing that substantially corresponds to the shape of a product and adapted to cover at least one side of the product but not fully enclosing the product ..."*) adapted to adhere to a product having a flat surface (§ [00028], [00032], [00044], figure 9C: the product 80 has a flat surface and the rigid casing 12 of the keeper is attached to the flat surface), a double-sided glue wherein a first side of the glue is attached to the plastic member and the second side of the glue is adapted to be adhered to the product (§ [00044], *"... a double-sided glue 140 with peel-off paper 142. The glue 140 is located on the perimeter of the improved Keeper 100 in order to attached it onto a product 80 protecting only one side of the product 80."*, figures 9B, 9C); a peel-off paper adhered to the second side of the glue prior to the plastic member being adhered to the product (§ [00044], *"peel-off paper 142"*, figure 9B); a security element or a non-EAS label (§ [00038]) attached to the plastic member and

inaccessible to a consumer when the Keeper is attached to the product (§ [00033], *"... side wall 28 is adapted to receive a security element 16 which may be adhered to side wall 28 by any suitable means such as an adhesive. The security element 16 is not accessible to consumers such that it cannot be removed and preferably cannot be seen."*, figure 2).

6.2 The subject-matter of claim 5 therefore differs from this known device in that the second side of the glue is a glue which is adapted to damage the product label if the Keeper is removed.

6.3 The problem to be solved by the present invention may therefore be regarded as how to render the device more resistant against tampering (e.g. an attempt of a thief to remove the security device from the product).

6.4 The solution proposed in claim 5 of the present application cannot be considered to involve an inventive step (Articles 52(1) and 56 EPC) for the following reasons:

6.4.1 Event though the embodiment of figures 9A-9C does not explicitly mention this specific property of the double-sided glue 140, the solution proposed in claim 5 is regarded to be obvious in the light of § [00037] of D1. In fact, the embodiment of figures 9A-9C would not make any technical sense if the used glue permitted to remove the keeper from the product without damaging the latter. Therefore, the skilled person starting from D1, particularly when willing to solve the above mentioned problem, readily realises without the need of any inventive step that the feature *"permanent adhesive"* mentioned in § [00037] can be applied to all the embodiments, including thus also the embodiment of figures 9A-9C. Therefore the skilled person would arrive to the subject-matter of claim 5 (flat surface option) using the teaching of D1 and common general knowledge without the need of any inventive step.

7 The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claim 5 (both flat and rounded surface options) is not new within the meaning of Article 54(1) and (2) EPC.

7.1 D5 discloses (the references in parenthesis applying to this document):

A disposable security device keeper having no locking mechanism (§ [0048], figure 8), in the following referred to as Keeper, comprising a semi-rigid flexible plastic member (§ [0020], *"flexible support"*, § [0036], *"The flexible support 12 may be manufactured from a clear*

plastic material such as, but not limited to, polypropylene.". The Young's modulus of polypropylene is between 1300 and 1800 N/mm², see e.g. **https://en.wikipedia.org/wiki/Polypropylene**, which characterises it as a semi-rigid flexible plastic material) adapted to adhere to a product having a rounded surface (§ [0048], figure 8), a double-sided glue wherein a first side of the glue is attached to the plastic member and the second side of the glue is adapted to be adhered to the product (§§ [0019], [0020], [0036], [0048], "*strong glue*", figures 1C, 8); a peel-off paper (§ [0036], "*peel-off paper*", § [0048], "*one or more peel-off papers*", figures 1C, 8) adhered to the second side of the glue prior to the plastic member being adhered to the product; a security element or a non-EAS label attached to the plastic member (§ [0035], "*security element 14*", § [0038], "*The security element 14 is attached to the side of the flexible support opposite that of the soft glue area.*", § [0048], "*Attached to the strong glue area of the top section 318 is a security element 314.*", figures 1C, 8) and inaccessible to a consumer when the Keeper is attached to the product (implicit: the technical teaching of D5 would be meaningless if the security element was accessible to the consumer when the EAS label is attached to the product. See also § [0048], "Once the cover label 300 is attached in a neat manner, the strong glue area with the security element 314 is attached to the product label, the security element 314 being covered by the flexible support 312..."); wherein the second side of the glue is a glue which is adapted to damage the product label if the Keeper is removed (§ [0048], "*... If the cover label 300 is attempted to be removed by a shoplifter, the strong glue area will tear and damage the product label, thereby making the product less saleable or not saleable in a subsequent market as a consumer may not wish to purchase damaged goods, especially if the cover label covers important product information.*").

As all the features of claim 5 (rounded surface option) are disclosed in the same combination in D5, the subject-matter of claim 5 is not new.

7.2 The EAS label of the embodiment of figure 8 of D5 is suitable also for being attached to a product having a flat surface (e.g a bottle with a rectangular section). Therefore, D5 is novelty destroying also for the flat surface option of claim 5.

Procedure

8 Upon amending with a view to overcoming the above objections, the should take into consideration the following remarks:

8.1 In order to facilitate the examination of the conformity of the amended application with the requirements of Article 123(2) EPC, the applicant is requested to clearly identify the amendments carried out, irrespective of whether they concern amendments by addition, replacement or deletion, and to indicate the passages **of the application as filed** on which these amendments are based. The applicant is reminded that, in case the amendments are directed to a combination of claims/features not originally defined in the claims, the basis should be provided on the basis of the original description. In case the claims define intermediate generalisations of originally disclosed embodiments, the applicant is requested to provide arguments of why these intermediate generalisations are allowable. Allowable intermediate generalisations must satisfy both the necessary conditions for valid intermediate generalisations (no essential and/or inextricably linked features can be removed from an embodiment) and the sufficient condition that they can be directly and unambiguously derived from the original disclosure taken as a whole (see GL, H-V, § 3.2.1). **Claims (including dependent claims) for which these conditions do not apply should be avoided**.

8.2 Documents D1-D5, which appear to represent the most relevant prior art, should be acknowledged in the description (Rule 42(1)(b) EPC).

8.3 The applicant should adapt the description to the claims on file and delete or amend any statements or expressions which throw doubt on the scope of protection (GL F-IV, 4.3). **Failure to do so could lead to the refusal of the application under Article 97(2) EPC in combination with Article 84 EPC**. The applicant should amend the description as needed to fulfil the following requirements:

8.3.1 The technical field of the invention (Rule 42(1)(a), GL F-II.4.2) must correspond to the amended set of claims.

8.3.2 The summary of the invention (Rule 42(1)(c) and GL F-II.4.5) must correspond to the amended set of claims. If appropriate, statements such as "The invention is set out in the appended set of claims" or "The invention is as defined in claim X" can be applied instead of repeating the claims verbatim.

8.3.3 **All embodiments which are not covered by the claims anymore must be deleted, unless these embodiments can reasonably be considered to be useful for highlighting specific aspects of the amended subject-matter. In such case, they must be prominently marked as not being part of the present invention**:

8.3.3.1 For example, independent claim <X> has been amended by limiting it to the feature of <feature A> . Ways of carrying out the invention using features presented as alternatives to this feature must either be deleted or the fact that they are not encompassed by the claims must be prominently stated.

8.3.4 **Any combinations of features which do not fall under the scope of the amended independent claims must be prominently marked as not being part of the present invention**.

8.3.4.1 For example, amended claim <X> comprises features <A>, <B> and <C> and the description on page X refers only to B+C as an embodiment of the invention. It must be marked as not being part of the invention.

8.3.5 Statements such as "The following examples/aspects/embodiments X, Y, Z are not according to the invention and are present for illustration purposes only" may be used at the start of the description (or in the list of figures) when such a situation arises.

8.3.6 **All technical features of the independent claims shall not be presented as optional in the description. Terms such as "for example", "may", "can", "exemplary", "optionally", "preferably" and the like should be removed when preceding a feature of an independent claim**.